

FUNDAMENTAL RIGHTS

PART III AS AN → ARTICLE 12 AND 13 → EQUALITY CODE AND RESERVATION → ARTICLE 19: SIX FREEDOMS → ARTICLES 20-22: CRIMINAL PROCESS → EXPLOITATION, RELIGION AND MINORITY

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g16 • explicit approval of this exact generation is required • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00 PART III AS AN OPERATING ARCHITECTURE, NOT A LIST

PART III AS AN OPERATING ARCHITECTURE, NOT A LIST PART III ARTICLE 12 DEFINES STATE; ARTICLE 13 CONTROLS LAW ARTICLES 14-18 ARTICLES 19-22 ARTICLES 23-24 ARTICLES 25-28 ARTICLES 29-30

PART III

GATEKEEPERS: Article 12 defines State; Article 13 controls law

EQUALITY: Articles 14-18

FREEDOMS: Articles 19-22

CONSTITUTIONAL BASIS / ARTICLE

- PART III
- GATEKEEPERS: Article 12 defines State; Article 13 controls law
- EQUALITY: Articles 14-18

POWER / PROCEDURE

- FREEDOMS: Articles 19-22
- EXPLOITATION: Articles 23-24
- RELIGION: Articles 25-28

CHECK / LIMIT

- CULTURE / EDUCATION: Articles 29-30
- REMEDY: Article 32
- SAVINGS / SPECIAL CONTROL: Articles 31A-31C and 33-35

FEDERAL / RIGHTS IMPACT

- REACH vertical: person versus State horizontal: express private reach in Articles 15(2), 17, 23 and 24 positive duty
- State may need to protect rights against private domination
- RIGHT = protected claim + justified limit + effective remedy.

MECHANISM / VERDICT — Apply the exact constitutional text, identify the lawful limit, test proportionality and select the fitting remedy before reaching a qualified verdict.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Part III combines rights, limits and remedies: Articles 12 and 13 control State action and law, while Article 32 converts protected freedoms into enforceable claims.

01

STAGE 01 ARTICLE 12 AND 13: WHO IS BOUND AND WHAT BECOMES VOID

ARTICLE 12 AND 13 WHO IS BOUND AND WHAT BECOMES VOID ARTICLE 12 INQUIRY UNION/STATE ORGANS + LOCAL AUTHORITIES + OTHER AUTHORITIES DEEP AND PERVASIVE CONTROL? FINANCIAL, FUNCTIONAL AND ADMINISTRATIVE DOMINATION? PUBLIC IMPORTANCE TIED TO GOVERNMENT?

PRADEEP KUMAR BISWAS (2002)

ARTICLE 12 INQUIRY

Union/State organs + local authorities + other authorities

deep and pervasive control?

financial, functional and administrative domination?

public importance tied to government?

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 12 INQUIRY
- Union/State organs + local authorities + other authorities
- deep and pervasive control?
- financial, functional and administrative domination?

POWER / PROCEDURE

- public importance tied to government?
- Pradeep Kumar Biswas (2002): cumulative instrumentality inquiry
- ARTICLE 13 INQUIRY pre-Constitution inconsistent law → void to extent of inconsistency post-Constitution abridging law → prohibited and
- void to that extent

CHECK / LIMIT

- "law" includes ordinance, rule, regulation, notification, custom and usage
- DOCTRINES severability
- waiver generally unavailable
- prospective overruling

FEDERAL / RIGHTS IMPACT

- AMENDMENTS: Article 13(4) + Article 368 → Kesavananda Bharati (1973) basic-structure review.

MECHANISM / VERDICT — Apply the exact constitutional text, identify the lawful limit, test proportionality and select the fitting remedy before reaching a qualified verdict.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 12 looks beyond legal form to governmental domination: an entity may be State when its financial, functional and administrative relationship reveals pervasive governmental control, while Article 226 may separately reach a non-State body performing a public duty.

02

STAGE 02 EQUALITY CODE AND RESERVATION DOCTRINE

EQUALITY CODE AND RESERVATION DOCTRINE ARTICLE 14 EQUALITY BEFORE LAW + EQUAL PROTECTION CLASSIFICATION INTELLIGIBLE DIFFERENTIA + RATIONAL NEXUS ARBITRARINESS IS ANTITHETICAL TO EQUALITY ARTICLES 15-16 NON-DISCRIMINATION + ENABLING SUBSTANTIVE-EQUALITY CLAUSES

FIRST AMENDMENT ARTICLE 15(4) INDRA SAWHNEY (1992)

CONSTITUTIONAL BASIS / ARTICLE

ARTICLE 14 equality before law + equal protection classification = intelligible differentia + rational nexus

E.P. Royappa (1973)/Maneka Gandhi (1978) = arbitrariness is antithetical to equality

ARTICLES 15-16 non-discrimination + enabling substantive-equality clauses

POWER / PROCEDURE

Champakam Dorairajan (1951) → First Amendment → Article 15(4)

Indra Sawhney (1992) → creamy layer, ordinary 50% ceiling, no 16(4) promotion

77th/81st/82nd/85th → promotion, backlog, qualification and seniority tools

CHECK / LIMIT

M. Nagaraj (2006)/Jarnail Singh (2018) → inadequacy data and Article 335 efficiency controls

103rd + Janhit Abhiyan (2022) → EWS upheld by majority

Davinder Singh (2024) → evidence-based SC sub-classification allowed, not mandated

FEDERAL / RIGHTS IMPACT

ARTICLES 17-18 abolish untouchability and reject titles with narrow exceptions.

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 14 equality before law + equal protection classification = intelligible differentia + rational nexus

POWER / PROCEDURE

- Champakam Dorairajan (1951) → First Amendment → Article 15(4)
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- M. Nagaraj (2006)/Jarnail Singh (2018) → inadequacy data and Article 335 efficiency controls

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ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 12 looks beyond legal form to governmental domination: an entity may be State when its financial, functional and administrative relationship reveals pervasive governmental control, while Article 226 may separately reach a non-State body performing a public duty.

STAGE 02

EQUALITY CODE AND RESERVATION DOCTRINE

EQUALITY CODE AND RESERVATION DOCTRINE

ARTICLE 14 EQUALITY BEFORE LAW + EQUAL PROTECTION CLASSIFICATION

INTELLIGIBLE DIFFERENTIA + RATIONAL NEXUS

ARBITRARINESS IS ANTITHETICAL TO EQUALITY

ARTICLES 15-16 NON-DISCRIMINATION + ENABLING SUBSTANTIVE-EQUALITY CLAUSES

FIRST AMENDMENT

ARTICLE 15(4)

INDRA SAWHNEY (1992)

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ARTICLE 14 equality before law + equal protection classification = intelligible differentia + rational nexus	Champakam Dorairajan (1951) → First Amendment → Article 15(4)	M. Nagaraj (2006)/Jarnail Singh (2018) → inadequacy data and Article 335 efficiency controls	ARTICLES 17-18 abolish untouchability and reject titles with narrow exceptions.
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CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 14 equality before law + equal protection classification = intelligible differentia + rational nexus
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POWER / PROCEDURE

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FEDERAL / RIGHTS IMPACT

- ARTICLES 17-18 abolish untouchability and reject titles with narrow exceptions.

MECHANISM / VERDICT — Apply the exact constitutional text, identify the lawful limit, test proportionality and select the fitting remedy before reaching a qualified verdict.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 14 combines reasonable-classification review with anti-arbitrariness, so formal differentiation cannot shield irrational, capricious or disproportionate State action.

03

STAGE 03

ARTICLE 19: SIX FREEDOMS AND RESTRICTION-GROUND DISCIPLINE

ARTICLE 19

SIX FREEDOMS AND RESTRICTION-GROUND DISCIPLINE

ARTICLE 19(1), CITIZENS ONLY SPEECH

PROFESSION VALID LAW + LISTED GROUND + REASONABLENESS +

SPEECH GROUNDS UNDER 19(2) SOVEREIGNTY/INTEGRITY

STATE SECURITY

FRIENDLY RELATIONS

PUBLIC ORDER DECENCY/MORALITY

ARTICLE 19(1), CITIZENS ONLY speech

profession valid law + listed ground + reasonableness + proportionality → SPEECH GROUNDS UNDER 19(2) sovereignty/integrity → State security

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- ARTICLE 19(1), CITIZENS ONLY speech - profession valid law + listed ground + reasonableness + proportionality - SPEECH GROUNDS UNDER 19(2) sovereignty/integrity	- State security - friendly relations - public order decency/morality	- ANCHORS press and right to know derive from 19(1)(a) - Shreya Singhal (2015): 66A void; advocacy differs from incitement - Anuradha Bhasin (2020): shutdown orders require publication and proportionality	- Kedar Nath Singh (1962): sedition read toward incitement - BNS section 152 requires exact analysis, not a claim that sedition was merely renamed.

MECHANISM / VERDICT — Apply the exact constitutional text, identify the lawful limit, test proportionality and select the fitting remedy before reaching a qualified verdict.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 19 protects six citizen freedoms through clause-specific discipline: the State must identify the exact restriction clause and closed ground, after which reasonableness and proportionality test the means.

04

STAGE 04

ARTICLES 20-22: CRIMINAL PROCESS, DIGNITY AND DETENTION

ARTICLES 20-22

CRIMINAL PROCESS, DIGNITY AND DETENTION

ARTICLE 20

ALL PERSONS NO RETROSPECTIVE CRIMINAL OFFENCE OR ENHANCED PENALTY

ARTICLE 21

A.K. GOPALAN (1950) COMPARTMENTALISATION

R.C. COOPER (1970) LINKAGE

JUST, FAIR AND REASONABLE PROCEDURE

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ARTICLE 20: ALL PERSONS no retrospective criminal offence or enhanced penalty no prosecution and punishment twice for same	A.K. Gopalan (1950) compartmentalisation → R.C. Cooper (1970) linkage	K.S. Puttaswamy (2017) test: legality + legitimate aim + proportionality + safeguards	44th Amendment's proposed two-month substitution has not commenced.
offence no compelled testimonial self-incrimination by an accused	Maneka Gandhi (1978): just, fair and reasonable procedure	ARTICLE 22 ordinary arrest: grounds + lawyer + magistrate within 24 hours preventive detention: distinct safeguards	
ARTICLE 21	dignity family: privacy, livelihood, legal aid and speedy trial	no-board period remains three months	

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 20: ALL PERSONS no retrospective criminal offence or enhanced penalty no prosecution and punishment twice for same
- offence no compelled testimonial self-incrimination by an accused
- ARTICLE 21

POWER / PROCEDURE

- A.K. Gopalan (1950) compartmentalisation → R.C. Cooper (1970) linkage
- Maneka Gandhi (1978): just, fair and reasonable procedure
- dignity family: privacy, livelihood, legal aid and speedy trial

CHECK / LIMIT

- K.S. Puttaswamy (2017) test: legality + legitimate aim + proportionality + safeguards
- ARTICLE 22 ordinary arrest: grounds + lawyer + magistrate within 24 hours preventive detention: distinct safeguards
- no-board period remains three months

FEDERAL / RIGHTS IMPACT

- 44th Amendment's proposed two-month substitution has not commenced.

FUNDAMENTAL RIGHTS • TILE 2/5 • same master rows 2282-5516 of 12363 • continues below

04

STAGE 04 ARTICLES 20-22: CRIMINAL PROCESS, DIGNITY AND DETENTION

ARTICLES 20-22 CRIMINAL PROCESS, DIGNITY AND DETENTION ARTICLE 20 ALL PERSONS NO RETROSPECTIVE CRIMINAL OFFENCE OR ENHANCED PENALTY ARTICLE 21 A.K. GOPALAN (1950) COMPARTMENTALISATION R.C. COOPER (1970) LINKAGE JUST, FAIR AND REASONABLE PROCEDURE

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ARTICLE 20: ALL PERSONS no retrospective criminal offence or enhanced penalty no prosecution and punishment twice for same	A.K. Gopalan (1950) compartmentalisation → R.C. Cooper (1970) linkage	K.S. Puttaswamy (2017) test: legality + legitimate aim + proportionality + safeguards	44th Amendment's proposed two-month substitution has not commenced.
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CONSTITUTIONAL BASIS / ARTICLE - ARTICLE 20: ALL PERSONS no retrospective criminal offence or enhanced penalty no prosecution and punishment twice for same - offence no compelled testimonial self-incrimination by an accused - ARTICLE 21	POWER / PROCEDURE - A.K. Gopalan (1950) compartmentalisation → R.C. Cooper (1970) linkage - Maneka Gandhi (1978): just, fair and reasonable procedure - dignity family: privacy, livelihood, legal aid and speedy trial	CHECK / LIMIT - K.S. Puttaswamy (2017) test: legality + legitimate aim + proportionality + safeguards - ARTICLE 22 ordinary arrest: grounds + lawyer + magistrate within 24 hours preventive detention: distinct safeguards - no-board period remains three months	FEDERAL / RIGHTS IMPACT 44th Amendment's proposed two-month substitution has not commenced.

MECHANISM / VERDICT — Apply the exact constitutional text, identify the lawful limit, test proportionality and select the fitting remedy before reaching a qualified verdict.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 20 restrains criminal power through protections against retrospective penal liability, double jeopardy and compelled testimonial self-incrimination, each operating within its defined scope.

05

STAGE 05 EXPLOITATION, RELIGION AND MINORITY AUTONOMY

EXPLOITATION, RELIGION AND MINORITY AUTONOMY ARTICLES 23-24 TRAFFICKING AND FORCED LABOUR PROHIBITED; MINIMUM-WAGE COERCION ARTICLES 25-28 INDIVIDUAL CONSCIENCE AND PROFESSION, PRACTICE AND PROPAGATION ARTICLE 26 DENOMINATION MANAGEMENT LIMITS

PUBLIC ORDER, MORALITY, HEALTH AND OTHER FRs STATE MAY REGULATE SECULAR ACTIVITY AND ENACT SOCIAL REFORM ARTICLES 29-30 ANY SECTION OF CITIZENS WITH DISTINCT LANGUAGE, SCRIPT OR

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ARTICLES 23-24 trafficking and forced labour prohibited	Article 26 denomination management limits: public order, morality, health and other FRs	29(1): any section of citizens with distinct language, script or culture	Autonomy survives regulation; regulation cannot erase institutional identity.
minimum-wage coercion can implicate 23 children below 14 barred from factories, mines and hazardous employment under 24	State may regulate secular activity and enact social reform	29(2): admission non-discrimination in covered institutions	
ARTICLES 25-28 individual conscience and profession, practice and propagation	ARTICLES 29-30	30: religious and linguistic minorities may establish and administer institutions	
CONSTITUTIONAL BASIS / ARTICLE - ARTICLES 23-24 trafficking and forced labour prohibited - minimum-wage coercion can implicate 23 children below 14 barred from factories, mines and hazardous employment under 24 - ARTICLES 25-28 individual conscience and profession, practice and propagation	POWER / PROCEDURE - Article 26 denomination management limits: public order, morality, health and other FRs - State may regulate secular activity and enact social reform - ARTICLES 29-30	CHECK / LIMIT 29(1): any section of citizens with distinct language, script or culture 29(2): admission non-discrimination in covered institutions 30: religious and linguistic minorities may establish and administer institutions	FEDERAL / RIGHTS IMPACT Autonomy survives regulation; regulation cannot erase institutional identity.

MECHANISM / VERDICT — Apply the exact constitutional text, identify the lawful limit, test proportionality and select the fitting remedy before reaching a qualified verdict.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 24's text is narrower than a complete ban on every kind of child work, while the amended statute creates broader prohibitions and defined exceptions.

06

STAGE 06 ARTICLE 32: WRIT REMEDIES AND THE ENFORCEMENT LADDER

ARTICLE 32 WRIT REMEDIES AND THE ENFORCEMENT LADDER RIGHT VIOLATED SUPREME COURT FOR FUNDAMENTAL RIGHTS ARTICLE 226 HIGH COURT FOR FRs AND OTHER LEGAL RIGHTS WRIT CHOICE HABEAS CORPUS PRODUCE DETAINED PERSON; TEST DETENTION



MECHANISM / VERDICT — Apply the exact constitutional text, identify the lawful limit, test proportionality and select the fitting remedy before reaching a qualified verdict.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 24’s text is narrower than a complete ban on every kind of child work, while the amended statute creates broader prohibitions and defined exceptions.

06

STAGE 06 ARTICLE 32: WRIT REMEDIES AND THE ENFORCEMENT LADDER

ARTICLE 32 WRIT REMEDIES AND THE ENFORCEMENT LADDER RIGHT VIOLATED SUPREME COURT FOR FUNDAMENTAL RIGHTS ARTICLE 226 HIGH COURT FOR FRS AND OTHER LEGAL RIGHTS WRIT CHOICE HABEAS CORPUS PRODUCE DETAINED PERSON; TEST DETENTION

RIGHT VIOLATED

ARTICLE 32 → SUPREME COURT for Fundamental Rights

ARTICLE 226 → HIGH COURT for FRs and other legal rights

WRIT CHOICE

CONSTITUTIONAL BASIS / ARTICLE

- RIGHT VIOLATED
- ARTICLE 32 → SUPREME COURT for Fundamental Rights
- ARTICLE 226 → HIGH COURT for FRs and other legal rights

POWER / PROCEDURE

- WRIT CHOICE
- HABEAS CORPUS produce detained person; test detention
- MANDAMUS compel public duty

CHECK / LIMIT

- PROHIBITION stop jurisdictional excess before completion
- CERTIORARI quash completed order for jurisdictional or legal error
- QUO WARRANTO test authority to hold public office

FEDERAL / RIGHTS IMPACT

- Article 32 is itself a Fundamental Right; legal fit still matters.
- Article 226 is territorially and remedially wider, not constitutionally inferior.

MECHANISM / VERDICT — Apply the exact constitutional text, identify the lawful limit, test proportionality and select the fitting remedy before reaching a qualified verdict.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 32 makes the Supreme Court a guaranteed Fundamental-Rights forum, while Article 226 is wider in subject matter and public-duty reach; the correct writ follows the defect—detention, unperformed duty, threatened excess, defective order or unlawful public office.

07

STAGE 07 SAVING CLAUSES, PROPERTY AND AMENDMENT DOCTRINE

SAVING CLAUSES, PROPERTY AND AMENDMENT DOCTRINE ARTICLE 31A SPECIFIED REFORM CATEGORIES PROTECTED FROM ARTICLE 14/19 ARTICLE 31B + NINTH SCHEDULE LISTED-LAW PROTECTION I.R. COELHO (2007) POST-24 APR 1973 INSERTIONS FACE BASIC-STRUCTURE REVIEW

ARTICLE 31C ORIGINAL PROTECTION FOR GENUINE ARTICLE 39(B)/(C) LAWS KESAVANANDA BHARATI (1973) LIMITS IMMUNITY MINERVA MILLS (1980) DEFEATS EXTENSION TO ALL DPSPs

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 31A specified reform categories protected from Article 14/19 attack
- ARTICLE 31B + NINTH SCHEDULE listed-law protection
- I.R. Coelho (2007): post-24 Apr 1973 insertions face basic-structure review

POWER / PROCEDURE

- ARTICLE 31C original protection for genuine Article 39(b)/(c) laws against 14 and 19
- Kesavananda Bharati (1973) limits immunity
- Minerva Mills (1980) defeats extension to all DPSPs

CHECK / LIMIT

- Property Owners Association (2024) preserves original 31C
- not every private asset is automatically a community resource
- 44th Amendment: Article 31 leaves Part III

FEDERAL / RIGHTS IMPACT

- Article 300A: every person; deprivation only by authority of law.

MECHANISM / VERDICT — Apply the exact constitutional text, identify the lawful limit, test proportionality and select the fitting remedy before reaching a qualified verdict.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Articles 31A-31C, 33-35 create defined constitutional controls rather than rights-free zones: their field, purpose and legislative competence remain text-bound and subject to basic-structure review where applicable.

08

STAGE 08 ARTICLE 358 AND 359: EMERGENCY EFFECTS ARE NOT THE SAME

ARTICLE 358 AND 359 EMERGENCY EFFECTS ARE NOT THE SAME ARTICLE 358 ARTICLE 359 AUTOMATIC OPERATION PRESIDENTIAL ORDER REQUIRED ARTICLE 19 ONLY SPECIFIED RIGHTS NAMED IN ORDER WAR/EXTERNAL-AGGRESSION ARTICLES 33-35

PARLIAMENT MAY TAILOR FRS FOR FORCES AND SPECIFIED SERVICES MAY INDEMNIFY MARTIAL-LAW ACTS AND HAS EXCLUSIVE COMPETENCE OVER MARTIAL LAW

CONSTITUTIONAL BASIS / ARTICLE

ARTICLE 358 ARTICLE 359 automatic operation Presidential order required

Article 19 only specified rights named in order war/external-aggression Emergency
Emergency while order operates changes State's Article 19

POWER / PROCEDURE

limit suspends enforcement, not text post-44th nexus conditions apply Articles 20 and 21 cannot be included

ARTICLES 33-35

CHECK / LIMIT

Parliament may tailor FRs for forces and specified services

may indemnify martial-law acts and has exclusive competence over listed matters.

FEDERAL / RIGHTS IMPACT

MARTIAL LAW != NATIONAL EMERGENCY local exceptional coercive control differs from constitutional proclamation.

No rule says all Fundamental Rights automatically disappear in Emergency.

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 358 ARTICLE 359 automatic operation Presidential order required
- Article 19 only specified rights named in order war/external-aggression
Emergency Emergency while order operates changes State's Article 19

POWER / PROCEDURE

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- ARTICLES 33-35

CHECK / LIMIT

- Parliament may tailor FRs for forces and specified services
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FEDERAL / RIGHTS IMPACT

- MARTIAL LAW != NATIONAL EMERGENCY local exceptional coercive control differs from constitutional proclamation.
- No rule says all Fundamental Rights automatically disappear in Emergency.

MECHANISM / VERDICT — Apply the exact constitutional text, identify the lawful limit, test proportionality and select the fitting remedy before reaching a qualified verdict.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Martial law does not automatically erase habeas corpus or create unlimited military power.

09

STAGE 09 CURRENT-LAW AND VERIFIED PYQ CONTROL RAIL

CURRENT TO 28 AUGUST 2026 ELECTORAL BONDS DAVINDER SINGH (2024) PROPERTY OWNERS ASSOCIATION (2024) DPDP PHASED COMMENCEMENT HARISH RANA 2026 INSC 222 BNS SECTION 152 PENDING 21 QUALIFIED PYQ ROUTES

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ARTICLE 358 ARTICLE 359 automatic operation Presidential order required	limit suspends enforcement, not text post-44th nexus conditions apply Articles 20 and 21 cannot be included	Parliament may tailor FRs for forces and specified services	MARTIAL LAW != NATIONAL EMERGENCY local exceptional coercive control differs from constitutional proclamation.
Article 19 only specified rights named in order war/external-aggression Emergency Emergency while order operates changes State's Article 19	ARTICLES 33-35	may indemnify martial-law acts and has exclusive competence over listed matters.	No rule says all Fundamental Rights automatically disappear in Emergency.
CONSTITUTIONAL BASIS / ARTICLE - ARTICLE 358 ARTICLE 359 automatic operation Presidential order required - Article 19 only specified rights named in order war/external-aggression Emergency Emergency while order operates changes State's Article 19	POWER / PROCEDURE - limit suspends enforcement, not text post-44th nexus conditions apply Articles 20 and 21 cannot be included - ARTICLES 33-35	CHECK / LIMIT - Parliament may tailor FRs for forces and specified services - may indemnify martial-law acts and has exclusive competence over listed matters.	FEDERAL / RIGHTS IMPACT - MARTIAL LAW != NATIONAL EMERGENCY local exceptional coercive control differs from constitutional proclamation. - No rule says all Fundamental Rights automatically disappear in Emergency.
MECHANISM / VERDICT — Apply the exact constitutional text, identify the lawful limit, test proportionality and select the fitting remedy before reaching a qualified verdict.			
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Martial law does not automatically erase habeas corpus or create unlimited military power.			

09

STAGE 09 CURRENT-LAW AND VERIFIED PYQ CONTROL RAIL			
CURRENT TO 28 AUGUST 2026	ELECTORAL BONDS	DAVINDER SINGH (2024)	PROPERTY OWNERS ASSOCIATION (2024)
DPDP PHASED COMMENCEMENT	HARISH RANA 2026 INSC 222	BNS SECTION 152 PENDING	21 QUALIFIED PYQ ROUTES
CURRENT ARTICLE 14/19 - Electoral Bonds: political-funding information - Davinder Singh (2024): SC sub-classification permitted - Property Owners Association (2024): original Article 31C survives	ARTICLE 21 / DATA - DPDP commencement is phased - Harish Rana (2026): CANH is medical treatment - passive safeguards; active euthanasia not legalised	SPEECH STATUS - BNS section 152 vires notice: 28 Aug 2025 - no final merits decision located through 28 Aug 2026	PYQ CONTROL 6 Mains + 15 Prelims routes 2024 Q76 official key D 2026 Q54 exact stem; provisional key D
MECHANISM / VERDICT — Separate settled holdings, notified commencement, pending litigation and provisional answer keys so current material never becomes timeless or overstated.			
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Current Part III answers earn credibility by stating the controlling holding, exact date and procedural status rather than treating every pending challenge as settled law.			

10

STAGE 10 EXACT 10/15/20-MARK ARCHITECTURE: LIBERTY, LIMITATION AND REMEDY			
10 / 15 / 20 MARKS	CLAIMANT + ARTICLE + RESPONDENT	EXACT LIMIT + PROPORTIONALITY	CONTROLLING CASES
REMEDY	COUNTERARGUMENT	CURRENT-LAW CONTROL	QUALIFIED VERDICT
10 marks: exact Article → listed limit → one case → remedy → 15 marks: architecture → clause text → two cases → objection/reply → 20 marks: evolution → comparison → 4-6 cases → current control → evaluation			
10 MARKS / 150 WORDS - claimant and exact Article - listed limit and proportionality - one case, remedy, qualification	15 MARKS / 250 WORDS - gatekeeper, right, limit, remedy, saving clause - two cases and objection/reply - institutional qualification	20 MARKS / 250 WORDS - origin and doctrinal evolution 4-6 cases plus current control - overreach, implementation and counterargument	FINAL VERDICT Liberty survives through legality, justification and enforceable remedy.
MECHANISM / VERDICT — Apply the exact constitutional text, identify the lawful limit, test proportionality and select the fitting remedy before reaching a qualified verdict.			
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: A high-scoring Fundamental Rights answer identifies the claimant and exact Article, tests the enumerated limit through proportionality, chooses the fitting remedy and ends with a qualified constitutional verdict.			

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

ARTICLE 17 DIRECTLY INVALIDATES CASTE DISABILITY.

ARTICLE 23 DIRECTLY PROHIBITS FORCED LABOUR.

VISHAKA (1997) USED ARTICLES 14, 19(1)(G) AND 21 TO FILL

PRIVACY DISPUTES BETWEEN INDIVIDUALS OFTEN OPERATE THROUGH EVIDENCE, FAMILY

NARROWED ARTICLE 358 TO EXTERNAL EMERGENCY

PROTECTED ARTICLES 20 AND 21 FROM ARTICLE 359

REQUIRED TIGHTER RELATION/RECITAL CONTROLS; AND

OPTIONAL DOCTRINE / CASE

- Article 17 directly invalidates caste disability.
- Article 23 directly prohibits forced labour.
- Vishaka (1997) used Articles 14, 19(1)(g) and 21 to fill a statutory vacuum around workplace sexual harassment.
- Privacy disputes between individuals often operate through evidence, family, labour or data statutes rather than a simple Article 32 petition.

ADVANCED LIMIT

- narrowed Article 358 to external Emergency;
- protected Articles 20 and 21 from Article 359;
- required tighter relation/recital controls; and
- retained judicial review of the Emergency architecture.

COMPARATIVE NUANCE

- Optional: The Core above is independently paper-complete.
- This section is for deeper 15/20-mark reasoning and unfamiliar hypotheticals.
- Equality as anti-subordination, not merely consistency [ANALYSIS] Formal equality asks whether similarly situated persons receive the same rule.
- Anti-subordination asks whether law entrenches a hierarchy such as caste, sex or disability.

OPTIONAL STATUS —

This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.